



State Certification Testing for Voting Systems

Maryland State Board of Elections
February 2026

V2.0

Introduction

This document describes the requirements for vendors seeking state certification for voting systems. The State Board of Elections (SBE) will conduct all testing independently of the voting system vendor. The testing results, along with a recommendation by the State Administrator, will be presented to the members of the State Board of Elections who, during a publicly held State Board Meeting, will formally vote on whether the voting system will be certified. If the voting system includes a certified network component and an uncertified election night network component, only the portion of the voting system related to the certified network will be considered by the members of the State Board of Elections for certification. However, SBE will make a recommendation to the board based on the viability of the entire system which would include all components certified and otherwise. Please note, if SBE is going through an active procurement for a new voting system, only the system selected will go through the Maryland State Certification testing.

Overview

- 1) Timeline – 60 days
- 2) Application
 - a) Identification of System. The application shall specify clearly the specific equipment, hardware, firmware, and software for which certification is sought.
 - b) Overview of System. The application shall provide a brief overview description of the voting system. Marketing brochures may be used for this purpose.
 - c) Use in Other Jurisdictions. The application shall include a list of all jurisdictions where:
 - i) The exact system for which certification is being sought, or a model or version of the system is in use, together with:
 - (1) The price that was charged to the jurisdiction for the system, and
 - (2) A breakdown of the per unit price and the price of any components.
 - ii) The exact system for which certification is being sought, or a model or version of the system has been but is no longer in use; and
 - iii) A request has been made for approval of the exact system for which certification is being sought or a model or version of the system, together with a statement of whether the request was granted, was denied, was withdrawn, or is pending.
 - d) Qualification Certificate. If an independent testing laboratory has completed qualification testing on the voting system, the application shall be accompanied by a:
 - i) Copy of the qualification certificate issued for the voting system; and
 - ii) Signed authorization directing the independent testing laboratory that performed the qualification testing to:
 - (1) Submit the results of its testing directly to the evaluation agent; and
 - (2) Allow the evaluation agent or his or her designee full access to all test records and data.
 - e) Certification Testing Transfer. If the voting system has successfully completed certification testing by or for another state, the application shall be accompanied by a:
 - i) Copy of the certification issued for the voting system; and
 - ii) Signed authorization directing the agency that performed the certification testing to:
 - (1) Submit the results of its testing directly to the evaluation agent, and
 - (2) Allow the evaluation agent or his or her designee full access to all test records and data.

- f) Application Fee. The application shall be accompanied by a non-refundable application fee of \$5,000. (COMAR 33.09.03.02(G))

3) Submission:

- ❑ Technical Data Package – This package must include:
 - Hardware schematic diagrams
 - Hardware theory of operation
 - Customer maintenance documentation
 - Operations manual
 - Software source code (both in the form of a listing and on a USB Flash Drive)
 - Hardening scripts (both in the form of a listing and on a USB Flash Drive)
 - Software system design
 - Customer documentation
 - A detailed list of any known and unresolved system problems, including those that have occurred in other jurisdictions.
 - When available, the report and test results of the independent testing laboratory
 - A full sample set of import files that demonstrate all features
 - Hashing Procedures
 - Authentic Hash Values for Comparison
 - A list of all third-party hardware, including make and model if applicable, required to utilize all components of the system (servers, workstations, etc.), a list of all third-party software required to install or operate the system and the terms of the license agreements for each identified software and the terms of the license agreements for all hardware and software identified in this bullet.
- ❑ Two precinct-based scanners
- ❑ One high speed central count scanner
- ❑ Two accessible voting devices
- ❑ Assistive devices for use by voters with disabilities with the accessible voting device
- ❑ Ballot receptacle
- ❑ Paper ballots for testing (see *Functional Testing* section below)
- ❑ Audio ballots for testing
- ❑ Election management software installed on appropriate computers and/or servers as recommended for use in the state
- ❑ A list of all ancillary equipment (switches, routers, cables, etc.) and the terms of the license agreements for each
- ❑ Completed Questionnaire – Parts 1 and 2
- ❑ Business Information Package (see instructions below)
- ❑ Affidavit of Anti-Bribery and Anti-Debarment (see instructions below)
- ❑ Risk Limiting Audits (RLA) Documentation/Procedures (if available)

Note: If SBE owns, leases or has in its possession hardware that can be upgraded, either third-party or from the voting system vendor, SBE may grant the vendor permission to use the equipment on site instead of supplying new or additional equipment. SBE may also request that the equipment be reset by the vendor prior to the start of testing.

4) SBE Evaluation (which is anticipated to take 60 days):

- a. Technical Review – SBE (or its agent) will conduct a technical analysis of the voting system by reviewing the technical data package and voting system software source code provided by the vendor with its certification package.
 - b. Functional Review – SBE (or its agent) will conduct a functionality review of the voting system by:
 - i. Conducting election testing on equipment and ballots provided by the vendor (see *Functional Testing* section below); and
 - ii. Reviewing responses provided by the vendor on the questionnaire regarding functional capabilities of the voting system (part 2).
- 5) SBE will contact the applicant:
- a. When the application for certification has been received.
 - b. When SBE is ready to begin the evaluation.
 - c. If SBE discovers a deficiency in the application or submission; and
 - d. If SBE has any questions during the evaluation.

Standards

- a) State Standards – Established under § 9-102(d)(1) and (3) of the Election Law Article of the *Annotated Code of Maryland*.
- b) Federal Standards –
 - i) If testing is complete, the vendor shall provide: (1) a qualification certificate from the EAC; (2) signed authorization directing the laboratory to submit the results to SBE and allow SBE full access to the laboratory's test records; and (3) a copy of the report issued by the independent testing laboratory showing that the system meets the standards as set out in the applicable Voluntary Voting System Guidelines.
 - ii) If testing is not complete, the vendor shall provide documentation from the EAC that the voting system has been submitted for qualification testing and a statement from the vendor that it reasonably anticipates that testing will be completed on or before September 5, 2026.
- c) Additional Considerations - Section 9-102(e) of the Election Law Article provides a list of additional factors that SBE shall consider during the certification process. Using the attached questionnaire (part 1), a vendor seeking certification shall indicate how its system addresses each of the additional factors for consideration.
- d) Accessibility Standards –
 - i) The vendor shall certify that the system provides access to voters with disabilities as provided in § 9-102(f) of the Election Law Article. Using the attached questionnaire (part 1, #20), a vendor seeking certification shall indicate how its system meets the accessibility standards.
 - ii) If the vendor has performed a usability and/or accessibility evaluation on the voting system version submitted for certification, the vendor shall provide a detailed description of the type of evaluation, the outcome of the evaluation and the agent who conducted the evaluation along with their credentials. If a usability and/or accessibility evaluation was not conducted, please explain why in the attached questionnaire (part 1, #21).

- iii) In addition to the above referenced accessibility standards, SBE must also conduct an accessibility and usability evaluation of the voting system of the system and an evaluation by individuals representing a cross-section of voters with disabilities. See Election Law Article, § 9-102(h)(2). Voting system equipment provided by the vendor will be used for this evaluation and public demonstration.

Public Demonstration

A public demonstration, using the databases provided for this testing, will be held within the 60 days allotted for certification. The applicant is required to provide all equipment, software and resources required for the demonstration at no cost to SBE. These demonstrations will take place virtually while allowing for live public comments and responses from the voting system vendor, and in person at three neutral venues designated by the vendor and approved by SBE, starting on a Tuesday and concluding on a Thursday unless otherwise specified by SBE. Specific details regarding dates and times will be provided within 30 days of SBE's receipt of the application for certification. At least 2 weeks prior to the public demonstration, a walkthrough of the virtual public demonstration must be presented to SBE for review and approval. Please ensure that the paper ballot layout and the accessible ballot layout reflect your best practices as they will not be altered by SBE for the demonstration. For the public demonstration ballots, please use generic terms, phrases and selections.

Functional Testing

Please review these instructions carefully as failure to follow them may result in delayed testing and certification. In addition to the required equipment and supplies listed herein, the applicant is responsible for ensuring that any other supplies or equipment necessary for conducting a mock election are provided. Additionally, please ensure that any equipment and ancillary items provided to SBE for the purpose of this testing are labelled so that they can be distinguished from the other equipment and items that SBE may have on site.

Instructions – Election Management System (EMS)

1. The applicant shall provide all equipment, including ancillary items, required to use the voting system's EMS.
2. The applicant shall have the voting system EMS components installed and the system hardened and configured in the way that is recommended for use.
3. The applicant shall provide a list of settings included that are not recommended for use and include an explanation of why those settings are not recommended.
4. The EMS provided to SBE shall include a primary election database and a general election database. Below are the general configurations for the databases. For detailed configurations, refer to the 2022 ballots provided and the information below.
 - a. Primary Election Database that includes:
 - i. Configured for all voting equipment being proposed
 - ii. English Only
 - iii. Ballot Styles by Precinct
 - iv. Ballot Sets for Republican, Democratic, Non-Partisan
 - v. Include Reporting Groups – Early Voting, Election Day, Mail-In Ballots 1, Provisional, Mail-In Ballots 2

- vi. "Official Ballot" must be printed on the header of the printed BMD ballot
- vii. All ballot Images captured if the system allows
- a. General Election Database that includes:
 - viii. Configured for all voting equipment being proposed
 - ix. Both English and Spanish – Within the contests, with the exception of the contest headers, English text must be separated by <space>/<space> Spanish text on the regular paper ballots but English Only and Spanish Only on the BMD ballots. Examples will be provided upon request.
 - x. Ballot Styles by Precinct
 - xi. Ballot Set for All Parties
 - xii. Include Reporting Groups – Early Voting, Election Day, Mail-In Ballots 1, Provisional, Mail-In Ballots 2
 - xiii. "Official Ballot\Papeleta Electoral Oficial" must be printed on the header of the printed BMD ballot
 - xiv. All Images captured if the system allows

Instructions – Ballots and Test Decks

1. A regular ballot test deck for each election database submitted and the settings used
2. An EVC-1 BMD test deck for each election database submitted, the instructions for creating them and the settings used
3. 20 blank ballots per style for the primary election database submitted
4. 5 blanks ballots per style for the general election database submitted
5. Screenshots of a BMD screen showing 1 column, 2 columns, 3 columns and 4 column layouts for a single contest
6. Any additional supplies required

Instructions – Tabulators and Media

1. Provide 2 precinct tabulators configured for the primary election (1 from the EVC-1 poll and the other from the first poll listed)
2. Provide 1 high speed scanner configured for the primary election (Mail-In Ballots 1 poll)
3. Provide 25 blank and formatted media required for the system
4. Provide 2 media devices from the Mail-In Ballots 1 poll with results and that is ready to upload (at least 500 ballots with images) for each election being provided
5. Provide 2 media devices from the EVC-1 poll with results and that is ready to upload (at least 500 ballot images) for each election being provided

Instructions – Accessible Equipment

1. Provide 2 accessible voting machines configured for the primary election (1 from the EVC-1 poll and the other from the first poll listed)
2. Provide 10 blank and formatted media devices

Instructions – Public Demonstration

1. Virtual Demonstration -

- a. Must provide SBE with a virtual walkthrough of the demonstration at least 2 weeks prior to the start of the demonstrations
 - b. All public demonstrations must be recorded and those recordings must be provided to SBE in MP4 format within 48 hours
 - c. Must allow for public comments/questions and vendor/SBE responses all of which should be provided to SBE in writing within 48 hours
 - d. Demonstrate the functionality of at least 1 precinct based scanner
 - e. Demonstrate the functionality of at least 1 accessible voting machine
 - f. Must provide all ancillary items required
 - g. Will take place from Tuesday to Thursday at a time specified by SBE
2. In-Person Demonstration –
- a. Vendor must locate and secure a central, ADA compliant, and neutral location
 - b. The location must be near a public transportation route
 - c. Must provide the ability for the public to schedule appointments
 - d. Must provide at least 3 precinct based scanners
 - e. Must provide at least 3 accessible voting machines
 - f. Must provide all ancillary items required including but not limited to ballots, blank paper and supplies
 - g. Will take place from Tuesday to Thursday, unless otherwise specified, at times specified by SBE

Business Information Package

The business information package shall include the information listed below. Each section must be clearly labeled and identified. If the vendor is not the manufacturer of the system, two business information packets – one for the vendor and one for the manufacturer – are required. Additionally, please provide a redacted business information package for any requests under the Public Information Act.

1. History and description of the business, including:
 - a. Year established,
 - b. Products and services offered,
 - c. Areas served,
 - d. Branch offices,
 - e. Subsidiaries,
 - f. Parent companies, and
 - g. Subsidiaries of parent companies;
2. Management and staff organization, including:
 - a. Number of full-time employees by category, and
 - b. Number of part-time employees by category;
3. The name and address of each:
 - a. Officer of the business, and
 - b. Person who is known to have a beneficial interest (as defined in State Finance and Procurement Article, §13-221, Annotated Code of Maryland) in the business or any parent company;

4. Financial history of business, including:
 - a. A financial statement for each of the past 3 fiscal years,
 - b. Gross sales in voting products and voting services for the past 3 fiscal years, and
 - c. The percentage that those sales represent of all sales of the business and its subsidiaries;
5. Location and manufacturing capability of each facility that is or will be used to fabricate and assemble all or any part of the voting system for which certification is being sought;
6. Location and servicing capability, including any service limitations, of each facility that is or will be used to serve the voting system for which certification is being sought;
7. The legal and financial relationship among all vendors and manufacturers of the voting system and its various components; and
8. Anti-Bribery and Anti-Debarment Affidavit (attached) signed by the vendor. If the vendor does not manufacture the voting system, an affidavit from the manufacturer must also be submitted.

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Affidavit of Anti-Bribery and Anti-Debarment

I am the (title) _____ and the duly authorized representative of (vendor/manufacture) _____ and that I possess the legal authority to make this Affidavit on behalf of myself and the business for which I am acting.

For purposes of this affidavit, the following terms have the meanings indicated.

1. "Controlling stockholder" means a stockholder who:
 - a. Owns more than 25 percent of the voting stock of a corporation; or
 - b. Notwithstanding the number of shares that the stockholder owns, has the power to direct or control the direction of the management or policies of a corporation.
2. "Convicted" includes an accepted plea of nolo contendere.
3. "Principal" means:
 - a. A sole proprietor;
 - b. A partner, officer, director, or controlling stockholder; or
 - c. An employee directly involved in the process of obtaining contracts with public bodies.
4. "Public body" means:
 - a. The United States;
 - b. Any state, territory, or possession of the United States; or
 - c. Any political subdivision of a state, territory, or possession of the United States.

To the best of the vendor's/manufacture's knowledge, this affidavit provides complete information on whether the vendor/manufacture or any principal in the vendor's/manufacture's business:

1. Has been convicted under the laws of any public body of bribery, attempted bribery, or conspiracy to bribe;
2. Has been convicted under the laws of any public body of:
 - a. A criminal offense incident to obtaining, attempting to obtain, or performing a public or private contract, or
 - b. Fraud, embezzlement, theft, forgery, falsification or destruction of records, or receiving stolen property;
3. Has been convicted under the laws of any public body of a criminal violation of an antitrust statute;
4. Has been convicted of a violation of the Racketeer Influenced and Corrupt Organization Act or of the Mail Fraud Act for acts in connection with the submission of bids or proposals for a public or private contract;
5. Has been convicted of conspiracy to commit any act or omission that would constitute grounds for conviction under any of the laws or statutes described in §C(1)—(4) of COMAR 33.09.03.07.
6. During the course of an official investigation or other proceeding, has admitted, in writing or under oath, an act or omission that would constitute bribery, attempted bribery, or conspiracy to bribe under the laws of any public body;
7. Has been found civilly liable under an antitrust statute of any public body for acts or omissions in connection with the submission of bids or proposals for a public or private contract;
8. Has ever been debarred or suspended from doing business with any public body or any agency, instrumentality, or unit of a public body; or
9. Is a principal, successor, assignee, subsidiary, or affiliate of any other person who has:
 - a. Been convicted under any of the laws or statutes described in items 1 through 5 above,
 - b. Made an admission described in item 6 above,

- c. Been found civilly liable for an act or omission described in item 7 above, or
- d. Been debarred or suspended as described in item 8 above.

Provide information of convictions, admissions, civil liabilities, or debarments, or indicate that there is no information to report.

I DO SOLEMNLY DECLARE AND AFFIRM UNDER THE PENALTIES OF PERJURY THAT THE CONTENTS OF THIS AFFIDAVIT ARE TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE, INFORMATION, AND BELIEF.

Date: _____

By: _____

(Authorized Representative and Affiant)